

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

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LLEVERN V. WATSON,

Plaintiff,

-against-

CITY OF NEW YORK, POLICE OFFICER
VUCETOVIC (Shield #599), and JOHN DOE whose
name and shield number is unknown but is a POLICE
OFFICER stationed at the 47th Precinct,

Defendants.
-----X

Plaintiff, LLEVERN V. WATSON, by and through his attorney Eli Wagschal, Esq. of
Richard L. Giampa, Esq., P.C., alleges upon knowledge, information, and/or belief as follows:

PARTIES

1. That at all times hereinafter mentioned, Plaintiff, LLEVERN V. WATSON, was and
still is a resident of the County of Bronx, State of New York.

2. At all times hereinafter mentioned, defendant THE CITY OF NEW YORK ("CITY"),
was and still is a municipal corporation organized and existing under and by virtue of the laws of the State
of New York.

3. At all times hereinafter mentioned, THE NEW YORK CITY POLICE DEPARTMENT
("POLICE"), was and is an agency of defendant CITY.

4. At all times hereinafter mentioned, defendants, POLICE OFFICER VUCETOVIC (Shield
#599) ("P.O. VUCETOVIC") and JOHN DOE whose name and shield number is unknown but is a
POLICE OFFICER stationed at the 47th Precinct, ("P.O. DOE") were and still are officers
employed by Defendants.

BACKGROUND

5. On June 9, 2018, at approximately 6:15 p.m., in the vicinity of 213th Street and White Plains Road in Bronx County, without just cause or provocation, defendants, including P.O. VUCETOVIC and P.O. DOE, handcuffed Plaintiff and intentionally and falsely accused Plaintiff of having committed the crimes of menacing in the second degree, criminal mischief in the fourth degree, harassment in the second degree, and related charges.

6. On or about June 9, 2018, a criminal complaint was issued at the directive of Defendants and a criminal action against Plaintiff commenced (Docket # 2018BX02029).

7. Plaintiff remained in custody until he was released on or about June 10, 2018.

8. Plaintiff had to defend against false charges until the criminal matter was terminated in Plaintiff's favor on June 15, 2018.

PROCEDURAL POSTURE

9. On September 5, 2018, Plaintiff served a Notice of Claim in writing sworn to on Plaintiff's behalf upon Defendant CITY, by delivering a copy thereof to the officer designated to receive such process personally, which Notice of Claim advised the Defendant of the nature, place, time, and manner in which the claim arose, and the items of damage and injuries sustained so far as was then determinable.

10. More than thirty days have elapsed since service of said notice and defendant CITY has failed to pay or adjust this claim.

11. A 50-H hearing has been held.

12. This action has been commenced within one year and ninety days after the cause of action of Plaintiff accrued.

13. Plaintiff has duly complied with all conditions' precedent to the commencement of this action.

FIRST CAUSE OF ACTION: FALSE IMPRISONMENT

14. Paragraphs 1-13 are incorporated by reference as fully set forth herein.

15. Plaintiff was aware of his arrest and confinement as described in paragraphs 5-7, and Plaintiff did not consent to that arrest or confinement.

16. Defendants intended to confine Plaintiff and the confinement was not privileged or authorized by any warrant, order, or other legal right.

17. As a result of being falsely imprisoned by the Defendants, Plaintiff sustained multiple injuries. Plaintiff was denied liberty and Plaintiff suffered emotional distress, humiliation and fear and intimidation for Plaintiff's safety.

SECOND CAUSE OF ACTION: MALICIOUS PROSECUTION

18. Paragraphs 1-17 are incorporated by reference as though fully set forth herein.

19. In arresting Plaintiff, the Defendants acted with malice. The Defendants lacked probable cause to arrest Plaintiff.

20. All charges pending against Plaintiff were dismissed and sealed upon the application of the District Attorney July 5, 2018.

21. As a result of being maliciously prosecuted by the Defendants, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for Plaintiff's safety.

THIRD CAUSE OF ACTION: BATTERY

22. Paragraphs 1-21 are incorporated by reference as though fully set forth herein.

23. When P.O. DOE grabbed Plaintiff and arrested Plaintiff, he subjected Plaintiff to a harmful or offensive bodily contact. P.O. DOE intended to make that contact without the consent of Plaintiff.

24. As a result of being battered by P.O. DOE, Plaintiff sustained multiple injuries, including loss of liberty, emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

FOURTH CAUSE OF ACTION: ASSAULT

25. Paragraphs 1-24 are incorporated by reference as though fully set forth herein.

26. P.O. VUCETOVIC and P.O. DOE, acting as the agents, servants and employees of the Defendants, placed Plaintiff in apprehension of imminent harmful or offensive contact.

27. As a result of being assaulted by P.O. VUCETOVIC and P.O. DOE, Plaintiff sustained multiple injuries, including emotional distress, humiliation, loss of enjoyment of life, and fear and intimidation for his safety.

WHEREFORE, Plaintiff demands judgment against the Defendants, together with the costs and disbursements of this action in the amount of damages greater than the jurisdictional limit of any lower court that would otherwise have jurisdiction, together with attorneys' fees and costs for bringing this case, and punitive damages.

Dated: Bronx, New York
April 4, 2019

Yours,



RICHARD L. GIAMPA, ESQ., P.C.

By: Eli Wagschal, Esq.

Attorney for Plaintiff

860 Grand Concourse, Suite 1H

Bronx, New York 10451

(718) 665-7700

VERIFICATION

STATE OF NEW YORK)

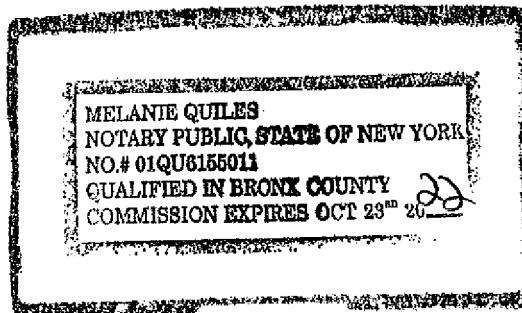
COUNTY OF BRONX) ss.:

LLEVERN V. WATSON, being duly sworn, deposes and states:

I am the plaintiff in the within matter. I have read the annexed Summons and Verified Complaint and know the contents thereof and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true.



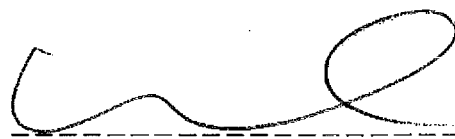
LLEVERN V. WATSON

Sworn to before me this 8thday of April, 2019
Notary Public

STATEMENT PURSUANT TO 22 NYCRR 130-1.1

Pursuant to 22 NYCRR 130-1.1, the undersigned, an attorney admitted to practice in the Courts of the State of New York, certifies that, upon information and belief and reasonable inquiry, the contentions contained in the annexed document are not frivolous.

Dated: Bronx, New York
April 4, 2019

A handwritten signature in black ink, appearing to read 'Richard L. Giampa', is written over a horizontal dashed line.

RICHARD L. GIAMPA, ESQ., P.C.

By: Eli Wagschal, Esq.

Attorney for Plaintiff

860 Grand Concourse, Suite 1H

Bronx, New York 10451

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